Revision Date:
06/01/2021

Background:
In-Home Supportive Services (IHSS) provides homemaker and personal care assistance to low-income customers who need assistance in their home so they can remain independent. These in-home services are provided by independent providers/IHSS providers/homemakers.

Customers applying for or receiving IHSS must have a Medi-Cal eligibility determination completed **before** in-home services are authorized.

IHSS Programs
The following programs provide in-home services:
- IHSS Plus Option (IPO) (Aid Code 2L)
- Personal Care Services Program (PCSP) (Aid Code 2M)
- IHSS Residual (Aid Code 2N)
- Community First Choice (CFCO) (Aid Code 2K)

IHSS aid codes are reported to the Medi-Cal Eligibility Data System (MEDS) via the Case Management Information and Payrolling System (CMIPS) and NOT entered by the Medi-Cal Human Services Specialist (HSS) into CalWIN.

Purpose:
This section is updated to add the IHSS-CFCO program and clarifications from All County Welfare Directors Letter (ACWDL) 20-15 regarding the Beneficiary Reimbursement Process (also known as the Conlan process).

Policy:
IHSS Programs:
IHSS Plus Option (IPO) (Aid Code 2L)
To qualify for IPO, Medi-Cal eligibility is required. Customers not receiving Supplemental Security Income/State Supplemental Program (SSI/SSP), or another Medi-Cal linked cash-based program (for example: Foster Care, CalWORKs, Refugee Cash Assistance [RCA], Adoptions Assistance Program [AAP]) must be determined eligible for federally funded full-scope Medi-Cal and qualify for in-home services through a Needs Assessment completed by an IHSS Social Worker.

Personal Care Services Program (PCSP) (Aid Code 2M)
To qualify for PCSP, customers not receiving SSI/SSP, or Medi-Cal linked to a cash-based program must be determined eligible for federally funded full-scope Medi-Cal and be found in need of personal care services through a Needs Assessment completed by an IHSS Social Worker.

IHSS Residual (Aid Code 2N)
IHSS Residual Program services will be available to customers who are eligible under current IHSS regulations but are not eligible for federally funded full-scope Medi-Cal.

Community First Choice (CFCO) (Aid Code 2K)
The CFCO program is an alternative for PCSP and IPO customers. CFCO provides home and community-based attendant services and supports for customers who are eligible for Medi-Cal, meet

specific income criteria and the Nursing Facility Level of Care (NFLOC). CFCO customers are eligible to be evaluated under Medi-Cal Spousal Impoverishment (SI) Provisions, if applicable. See MPG 05.18.01 for the SI Provisions eligibility and Doctor's Verification process.

Case Processing:

Application

The Single Streamlined Application and related forms are used to complete the Medi-Cal determination. The Medi-Cal application packet must contain Disability Determination Services Division (DDSD) forms for cases in which the applicant's disability has not already been determined.

Redetermination

The MC 210RV and related forms are used to complete the annual redetermination.

Share-of-Cost (SOC)

Customers with a SOC are treated as Medically Needy customers with a SOC. The SOC may be met with any medical service (including payments to the IHSS provider) and out-of-pocket expenses for personal services.

IHSS Plus Option Income

Payments made under the IHSS Plus Option are exempt as income and property. These exempt payments include:

- Caregiver wages that are paid to a parent of an IHSS Plus Option minor child recipient for services provided to that child
- Caregiver wages that are paid to a spouse of an IHSS Plus Option recipient for services provided to that recipient
- Restaurant meal allowances from IHSS for the IHSS Plus Option recipient
- The advance payments made to IHSS Plus Option recipients to pay their caregivers directly for services provided under the IHSS Plus Option

In-Home Caregiver Wages

In-home caregiver wages received by a spouse/parent for the care of their spouse or minor child in receipt of federal, state, or local government in-home services program are exempt as income and property for Medi-Cal purposes. This exemption includes payments received by a parent or spouse of an IHSS Residual recipient.

In-Home Care Services Payments

Payments made by the Department of Health Care Services (DHCS) to an in-home care recipient for the purpose of purchasing in-home care services, including restaurant meals, are exempt as income and property for Medi-Cal purposes.

Procedure:

Application

Complete a Medi-Cal eligibility determination using Medi-Cal rules, forms, and Notices of Actions (NOAs) for all applicants or recipients of IHSS. The IHSS Needs Assessment can be completed by the IHSS Social Worker at any time during this process.

Hospital & Community Support Services HSSs
Process IHSS related Medi-Cal referrals according to the procedures outlined in MPG 4.2, MPG 4.3, and Medi-Cal Processing Guide 02 CMIPS II Interface Activities.

Aged & Disabled Federal Poverty Level (A&D FPL) Program
The Medi-Cal determination is separate from the IHSS determination. Determine potential eligibility to the A&D FPL according to the policies outlined in MPG 5.19.

Disability Determination Services Division (DDSD)
For cases that require a disability determination, follow the DDSD requirements outlined in MPG 5.4.

CalWORKs Discontinuance
When a CalWORKs recipient, who is also receiving IHSS, is discontinued and has no other MediCal eligibility, contact the IHSS Social Worker to request a copy of the DDSD determination. If the DDSD determination shows that the recipient is disabled and the reexamination date has not passed, use that determination for Medi-Cal eligibility.

Redetermination
Each Family Resource Center (FRC) is responsible for completing the annual redetermination of these cases according to the procedures outlined in MPG 4.15 and Medi-Cal Processing Guide 02 CMIPS II Interface Activities.

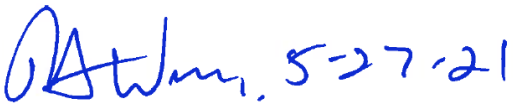
Beneficiary Reimbursement Process (BRP)
IHSS beneficiaries who are Medi-Cal eligible and paid an out-of-pocket expense for the excess SOC can file a claim to request reimbursement. See MPG 04.02.10J for the BRP (also known as the Conlan process). For scenarios where Spousal Impoverishment (SI) provisions are involved, see Processing Guide 25.

Program Impacts
None.

References:
ACLs 05-05, 05-05E, 07-11
ACWDLs 05-21, 05-29, 07-02, 07-05, 15-02, 17-25, 18-19, 20-15
County Policy

Sunset Date:
This policy will be reviewed for continuance by 06/30/2024.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services